

Schedules

*The Constitution of India at the time of its adoption had only 8 schedules but, there are 12 schedules in our Constitution at present.

*First Schedule – States and Union Territories with territorial demarcation.

*Second Schedule – Provisions relating to the salary, emoluments and allowances of the various office bearers of the Union of India.

*Third Schedule – Forms of oaths and affirmations of the various office bearers of the Union of India.

*Fourth Schedule – Allocation of seats in the Council of State to the States and Union Territories.

*Fifth Schedule – Provisions relating to the administration and control of scheduled areas and scheduled tribes.

*Sixth schedule – Provisions relating to the administration of tribal areas in the States of Assam, Meghalaya, Tripura and Mizoram.

*Seventh Schedule – Division of powers between the Union and the States. It contains three lists-

- | | |
|-----------------------|---|
| (i) Union List | – Originally 97 subjects (presently 98) and only the centre has the power to make laws on these subjects. |
| (ii) State list | – Originally 66 subjects (presently 59) and only the States have the power to make laws on these subjects. |
| (iii) Concurrent list | – Originally 47 subjects (presently 52) and on these subjects the centre and the States both have the power to make laws. |

*Radio and Television, stock exchanges and future market, share market, Post Office, Banking, Census, Insurance, Defence, Railways and corporation taxes etc., come under the Union list. ***Police, Public health and sanitation, gas, agriculture, railway police, prisons, Panchayati Raj or local Government and land reforms** etc., come under the State list. *Economic and Social planning, Criminal procedure, population control and family planning, education, Forests, Marriage, Divorce and adoptions etc., come in the Concurrent List.

Eighth Schedule – Languages recognised by the Constitution. Originally, it had 14 languages, but presently, there are 22 languages. Sindhi was added by the 21st Constitutional Amendment Act of 1967.* Konkani, Nepali and Manipuri were added by the 71st Amendment Act, 1992 and Bodo, Dogri,

Maithili and Santhali were added by the 92nd Amendment Act, 2003. Oriya was renamed as Odia by the 96th Amendment Act, 2011.

*Ninth Schedule – Validation of certain Acts and regulations (originally 13 but presently 282). *It was added by the 1st Constitutional Amendment Act, 1951.

*Tenth Schedule – Provision relating to disqualification of the members of Parliament and State Legislatures on the ground of defection. *It was added by the 52nd Amendment Act 1985. Also known as Anti-Defection Law.

*Eleventh Schedule – Specifies the power, authority and responsibilities of Panchayats. It has **29 subjects**. It was added by the **73rd Constitutional Amendment Act, 1992**.

*Twelfth Schedule – Specifies the power, authority and responsibilities of municipalities. It has **18 subjects**. It was added by the **74th Constitutional Amendment Act, 1992**.

1. Total number of Schedules in the Constitution is –

- | | |
|--------|--------|
| (a) 12 | (b) 16 |
| (c) 8 | (d) 10 |

M.P.P.C.S. (Pre) 1990

Ans. (a)

There are 12 Schedules in our Constitution. Originally there were only 8 Schedules but 4 Schedules were added by Amendment Acts. 9th Schedule was added by the 1st Amendment Act, 1951, related to the Validation of certain Acts and Regulations. 10th Schedule was added by the 52nd Amendment Act, 1985, which contains provisions of disqualification on the grounds of defection. 11th Schedule was added by the 73rd amendment in 1992 and it contains provisions of Panchayati Raj. 12th Schedule was added by the 74th Amendment Act, 1992 which contains provisions of the Municipal Corporation.

2. Indian Constitution has -

- | | |
|------------------|------------------|
| (a) 9 Schedules | (b) 12 Schedules |
| (c) 10 Schedules | (d) 11 Schedules |

M.P.P.C.S. (Pre) 2010

Ans. (b)

See the explanation of the above question.

3. Consider the following statements:

- 1. The Constitution of India has 20 parts.**
- 2. There are 390 Articles in the Constitution of India in all.**
- 3. Ninth, Tenth, Eleventh and Twelfth Schedules were added to the Constitution of India by the Constitution (Amendment) Acts.**

Which of the statements given above is/are correct?

- (a) 1 and 2 (b) 2 only
(c) 3 only (d) 1, 2 and 3

I.A.S. (Pre) 2005

Ans. (c)

The Constitution of India has 22 Parts. Hence, statement (1) is incorrect. There are 395 Articles in the Constitution of India, therefore statement (2) is also incorrect. Ninth, Tenth, Eleventh and Twelfth Schedules were added to the Constitution of India by Constitutional (Amendment) Acts. Hence, statement (3) is correct. The Ninth Schedule added by the first Amendment Act, 1951 is related to land reforms and abolition of the Zamindari system, tenth schedule added by the 52nd Amendment Act, 1985, is related to Anti-defection provisions for members of Parliament and Members of the State Legislatures. By the Eleventh Schedule added through the 73rd Amendment Act, 1992; Panchayats have been given administrative control while in the Twelfth Schedule, added by the 74th Amendment Act, 1992 municipalities are given administrative control.

4. Which one of the following Schedules of the Indian Constitution lists the names of states and specifies their territories?

- (a) First (b) Second
(c) Third (d) Fourth

I.A.S. (Pre) 2003

U.P.P.C.S. (Mains) 2014

Ans. (a)

First Schedule	- This lists the states and territories of India.
Second Schedule	- This lists the salaries of officials holding public office, Judges and CAG.
Third Schedule	- Forms of Oaths or Affirmations
Fourth Schedule	- This details the allocation of seats in the Rajya Sabha.

5. If a new state of the Indian Union is to be created, which one of the following Schedules of the Constitution must be amended?

- (a) First (b) Second
(c) Third (d) Fourth

I.A.S. (Pre) 2001

U.P. Lower Sub (Spl.) (Pre) 2008

Ans. (a)

The First Schedule comprises the States and Union territories; hence it must be amended if a new State/Union Territory is to be created.

6. Fourth Schedule of the Constitution of India deals with

- (a) Allocation of seats for the Council of States
(b) Political defection
(c) Panchayat system
(d) Languages

U.P.P.C.S. (Mains) 2015

Ans. (a)

The Fourth Schedule of the constitution deals with the allocation of seats for the Council of States.

7. Which of the following are enshrined in the third schedule of the Indian Constitution?

1. Form of oath of office for a Minister for the Union.
2. Form of oath to be made by the Chief Justice of Supreme Court.
3. Form of oath of office for the President of India.
4. Form of oath to be made by a Member of Parliament.

Select the correct answer using the code given below:

Code :

- (a) 1, 2, 3 (b) 2, 3, 4
(c) 1, 2, 4 (d) 1, 2, 3, 4

U.P.P.C.S. (Pre) 2017

Ans. (c)

The third schedule of the Indian Constitution deals with forms of oaths or affirmations to be made by the following:

- (i) A Minister for the Union
- (ii) A candidate for election to Parliament
- (iii) A member of Parliament
- (iv) The Judges of the Supreme Court and the comptroller and Auditor - General of India.
- (v) The State Ministers
- (vi) A candidate for election to the legislature of a state
- (vii) A member of the legislature of a state
- (viii) The Judges of a High court

The form of oath for the President of India has been given in Article 60 of the constitution, not in the third schedule.

Thus, option (c) is the correct answer.

8. Match List – I with List – II and select the correct answer from the code given below the lists.

List – I (Schedule)

List – II (Subject)

A. Third Schedule

1. Allocation of seats in the Council of States

B. Fourth Schedule

2. Forms of Oath or Affirmations

C. Seventh Schedule

D. Eighth Schedule

3. Languages

4. List of subject matter of laws to be made by the Parliament and by State Legislatures

Code :

	A	B	C	D
(a)	3	4	2	1
(b)	1	2	3	4
(c)	4	3	1	2
(d)	2	1	4	3

U.P.P.C.S. (Pre) 2022

Ans. (d)

The correct match is following—

Schedule	Subject
Third Schedule	Forms of Oath or Affirmations
Fourth Schedule	Allocation of seats in the Council of States
Seventh Schedule	List of subject matter of laws to be made by the Parliament and by the State Legislatures
Eighth Schedule	Languages

9. Match List-I with List-II and select the correct answer from the code given below:

List-I

(Schedules of the Constitution)

List-II

(Subject- matter)

A. 4th

B. 6th

C. 8th

D. 9th

1. Land Reforms

2. Language

3. Council of States

4. Tribal Areas

Code :

	A	B	C	D
(a)	1	2	3	4
(b)	2	3	4	1
(c)	3	4	2	1
(d)	4	2	1	3

U.P.P.C.S. (Pre) 1999

Ans. (c)

The matched order is as follows :

Schedule	Subject
4 th	- Allocation of Seats in the Council of States
6 th	- Tribal Areas of Assam, Meghalaya, Tripura and Mizoram.
8 th	- Languages
9 th	- Land Reforms

10. Match List-I with List-II and select the correct answer from the code given below the lists:

List-I

A. 7th Schedule

B. 8th Schedule

C. 9th Schedule

D. 10th Schedule

List-II

1. Languages

2. Disqualification on ground of defection

3. Distribution of legislative powers

4. Validation of certain Acts

Code :

	A	B	C	D
(a)	3	1	2	4
(b)	2	3	4	1
(c)	3	1	4	2
(d)	4	2	1	3

U.P.R.O./A.R.O. (Pre) 2016

Ans. (c)

The match of List-I and List-II is as follows :

List-I	List-II
7 th Schedule	- Distribution of Legislative Powers (union, state and concurrent list)
8 th Schedule	- Languages
9 th Schedule	- Validation of certain Acts
10 th Schedule	- Disqualification on the ground of defection

11. Match List-I with List-II and select the correct answer from the codes given below.

List-I

A. 7th Schedule

B. 8th Schedule

C. 9th Schedule

D. 10th Schedule

List-II

1. Languages

2. Disqualification on the ground of defection

3. Union, State and Concurrent lists

4. Validation of certain Acts

Codes :

	A	B	C	D
(a)	4	2	1	3
(b)	3	1	2	4
(c)	2	3	4	1
(d)	3	1	4	2

U.P. R.O./A.R.O. (Pre) (Re-Exam) 2016

Ans. (d)

See the explanation of the above question.

12. Which one of the following pairs (Schedule – Subjects) is not correctly matched?

- (a) Third Schedule – Forms of Oaths or Affirmations
- (b) Tenth Schedule – Provisions as to disqualification on ground of defection
- (c) Eighth Schedule – Languages
- (d) Ninth Schedule – Allocation of seats in the Council of States

U.P.P.C.S. (Pre.) 2023

Ans. (d)

Schedules	Features of Schedules
Third Schedule	It contains the forms of oath and affirmation for : Union Ministers of India, Parliament Election Candidates, Members of Parliament (MPs), Supreme Court Judges, Comptroller and Auditor General, State Ministers, State Legislature Elections' Candidates, State Legislature Members and High Court Judges.
Fourth Schedule	Allocation of seats in the council of states.
Eighth Schedule	It deals with the 22 official languages recognized by the Constitution of India.
Ninth Schedule	It deals with the state Acts and regulations that deal with land reforms and abolition of the zamindari system. It also deals with the Acts and regulations of the Parliament dealing with other matters. Note : The 1 st Amendment Act 1951 added the Ninth Schedule to protect the laws included in it from judicial scrutiny on the ground of violation of fundamental rights.
Tenth Schedule	It contains provisions relating to disqualification of the members of the Parliament and the State Legislatures on the ground of defection. Note : This schedule was added by the 52 nd Amendment Act of 1985, also known as the Anti-defection Law.

13. The Ninth Schedule was introduced in the Constitution of India during the prime ministership of :

- (a) Jawaharlal Nehru
- (b) Lal Bahadur Shastri

(c) Indira Gandhi

(d) Morarji Desai

I.A.S. (Pre) 2019

Ans. (a)

The ninth schedule of Indian Constitution was introduced during the Prime Ministership of Jawaharlal Nehru. It was added by the Constitution (First Amendment) Act, 1951. The main objective of this amendment Act was to insert provisions fully securing the constitutional validity of Zamindari abolition laws in general, and certain specified state Acts in particular.

14. To give constitutional protection, state land reforms laws have been included in the –

- (a) 7th Schedule
- (b) 9th Schedule
- (c) 8th Schedule
- (d) 10th Schedule

U.P.P.C.S. (Mains) 2003

Ans. (b)

The laws related to Land Reform and Zamindari Abolition have been given Constitutional protection by Schedule 9 of the Constitution which was inserted by the first Amendment in June 1951.

15. Consider the following statements :

1. The Parliament of India can place a particular law in the Ninth Schedule of the Constitution of India.
2. The validity of a law placed in the Ninth Schedule cannot be examined by any court and no Judgement can be made on it.

Which of the statements given above is/are correct?

- (a) 1 only
- (b) 2 only
- (c) Both 1 and 2
- (d) Neither 1 nor 2

I.A.S. (Pre.) 2018

Ans. (a)

*Ninth schedule deals with Acts and Regulations (originally 13, presently 282) of the state legislature dealing with land reforms and abolition of the Zamindari system and of the Parliament dealing with other matters.
* This schedule was added by the 1st Amendment Act, 1951 to protect laws included in it from judicial scrutiny on the ground of violation of Fundamental Rights.
*However, in 2007, the Supreme Court ruled that the laws included in this schedule after April 24, 1973, are now open to judicial review.

16. Coelho case is related to which Schedule of the Constitution of India?

- (a) Seventh
- (b) Eighth

(c) Ninth

(d) Tenth

U.P. P.C.S. (Mains) 2017

Ans. (c)

Coelho case is a landmark case which upheld the authority of the Judiciary to review laws - including the ones under the 9th schedule - against violation of the Basic structure of the constitution. It is also known as the 9th schedule case.

17. The Provision of three legislative lists is found in the following Schedule of the Constitution—

(a) VI

(b) VII

(c) VIII

(d) None of the above

U.P.R.O./A.R.O. (Mains) 2021

Ans. (b)

The provision of three legislative lists is found in the VIIth Schedule of the Constitution.

18. Match the following :

I. Union List A. 97 entries

II. State List B. 47 entries

III. Concurrent list C. 66 entries

Code :

I II III

(a) A B C

(b) A C B

(c) A A B

(d) C B A

(e) None of the above/ More than one of the above

60th to 62nd B.P.S.C. (Pre) 2016

Ans. (b)

The correct match is as follows :

Union List - 97 entries (Currently 98)

State List - 66 entries (Currently 59)

Concurrent list - 47 entries (Currently 52)

19. Under the Constitution of India, Economic Planning is a subject:

(a) In the State List

(b) In the Union List

(c) In the Concurrent List

(d) Not specified in any list

Uttarakhand P.C.S. (Pre) 2002

Ans. (c)

Entry No. 20 of the Concurrent List is related to Economic and Social Planning. It is to be noted that the Planning Commission of India was established by the Government of India under this entry.

20. Economic planning is included in which list of Constitution-

(a) Union List

(b) State List

(c) Concurrent List

(d) Special List

U.P.U.D.A./L.D.A. (Pre) 2006

Ans. (c)

See the explanation of the above question.

21. Prevention of cruelty to animals is listed in which list of the Indian Constitution ?

(a) Union List

(b) State List

(c) Concurrent List

(d) Preamble

(e) None of the above / More than one of the above

66th B.P.S.C. (Pre) (Re- Exam), 2020

Ans. (c)

Prevention of cruelty to animals (entry 17) is listed in the Concurrent List of the seventh schedule of the Constitution of India.

22. Which of the following is the subject of Concurrent List?

(a) Police

(b) Criminal Matters

(c) Radio and Television

(d) Foreign Affairs

Chhattisgarh P.C.S. (Pre) 2011

U.P.P.C.S. (Mains) 2005

Ans. (b)

Criminal Laws including all matters included in the Indian Penal Code, are the subjects of Concurrent List, while Police is the subject of the State List. Foreign Affairs, Radio and Television are the subject of the Union List.

23. Which of the following Entry is subject of Concurrent List-

(a) Population control and family planning

(b) Public health and sanitation

(c) Per-person Tax

(d) Treasure Travel

I.A.S. (Pre) 1993

Ans. (a)

Population Control and Family Planning are the subjects of the Concurrent List (Entry No. 20-A added by the 42nd Amendment Act 1976), and Public Health and Sanitation (Entry-6), Treasure Trove (Entry-44) and Per-Person Tax are State List subjects.

- 24. The Concurrent list of the Indian Constitution includes :**
1. Trade and Commerce
 2. Adulteration of Goods
 3. Succession

Select the correct answer from the codes given below :

- (a) 1 and 3 (b) 1, 2 and 3
(c) Only 1 (d) 2 and 3

U.P.P.C.S. (Pre) 2024

Ans. (d)

“Adulteration of foodstuffs and other goods’ under entry-18 and ‘Succession’ under entry-5 are included in the Concurrent List of the Seventh Schedule of the Indian Constitution. The ‘Inter-State trade and commerce’ is in the Union List under entry 42. While, “Trade and commerce within the state’ is in the State List under entry-26, but it is subject to the entry-33 of the Concurrent List.

The entry-33 of the concurrent list includes, Trade and Commerce in, and the production, supply and distribution of-

- (a) the products of any industry where the control of such industry by the Union is declared by the Parliament by law to be expedient in the public interest, and imported goods of the same kind as such products;
(b) foodstuffs, including edible oilseeds and Oils;
(c) Cattle fodder, including oilcakes and other concentrates;
(d) raw cotton, whether ginned or unginned, and cotton seeds, and
(e) raw jute.

Hence, the trade and commerce of the above mentioned goods is also included in the Concurrent List. Nevertheless, the U.P.P.S.C. in its answer-key, mentions option (d) as correct, because the Inter-State and Within the State trade and commerce is mentioned under Union and State lists respectively.

- 25. Which of the following is not correctly matched?**

- | | |
|--|-----------------|
| (a) Public Health and Sanitation | State List |
| (b) Census | Union List |
| (c) Allocation of seats in the council of States | Second Schedule |
| (d) Anti-Defection | Tenth Schedule |

U.P.P.C.S. (Pre) 2019

Ans. (c)

The Fourth Schedule of the Indian Constitution deals with the allocation of seats in the Council of States (Rajya Sabha). The rest are all correctly matched.

- 26. Which of the following Subject lies in the Concurrent List?**

- (a) Agriculture (b) Education
(c) Police (d) Defence

47th B.P.S.C. (Pre) 2005

Ans. (b)

Currently there are 52 Subjects defined and enlisted under List - III of the 7th Schedule of the Constitution of India, which form the joint domain of both the State Governments and the Union Territories of India as well as the Central Government of India. Initially, Education was the subject of State List (Entry no.-11), but under 42nd Amendment of the Constitution, 1976 Education became a concurrent list subject which enables both Central and State Government to legislate on the subject matter of Education.

- 27. Education which was initially a state subject was transferred to the Concurrent List by the**

- (a) 24th Amendment (b) 25th Amendment
(c) 42th Amendment (d) 44th Amendment

U.P. Lower Sub. (Pre) 2008

U.P.P.C.S. (Mains) 2017

Ans. (c)

See the explanation of the above question.

- 28. By which Amendment of the Constitution of India forests were transferred from the State list to the Concurrent List ?**

- (a) 41st (b) 42nd
(c) 43rd (d) 45th

Chhattisgarh P.C.S. (Pre) 2020

Ans. (b)

The Constitution (Forty-Second Amendment) Act, 1976 restructured the Seventh Schedule, ensuring that the State List Subjects like Forests, Education, Protection of Wildlife Animals and Birds were transferred to the Concurrent List. Thus, the correct answer is an option (b).

- 29. Which one of the given Subjects is not correctly matched with their List**

- | Subject | List |
|-----------------------------|------------|
| (a) Forest | Concurrent |
| (b) Stock Exchange | Concurrent |
| (c) Post Office Saving Bank | Union |
| (d) Public Health | State |

U.P.P.C.S. (Pre) 2009, 2010

Ans. (b)

Stock Exchange and Post Office saving Bank are the subjects of the Union List, while Public health is a subject of the State List. The Forest is the subject of the Concurrent List (initially it was the subject of the State List).

30. Match the following-

List- I	List II
A. Union List	1. Police and Public Order
B. State List	2. Space Research
C. Concurrent List	3. Census
D. Residuary Subject	4. Population Control and Family Planning

Code :

A	B	C	D
(a) 3	1	4	2
(b) 2	3	1	4
(c) 1	2	3	4
(d) 4	1	2	3

U. P. P. C. S. (Mains) 2004

Ans. (a)

The match of List-I with List-II is as follows :

List-I	List-II
Union List	- Census
State List	- Police and Public Order
Concurrent List	- Population Control and Family Planning
Residuary Subjects (Vested with Centre)	- Space Research

31. Which of the following provisions of the Constitution of India have a bearing on Education?

1. Directive Principles of State Policy
2. Rural and Urban Local Bodies
3. Fifth Schedule
4. Sixth Schedule
5. Seventh Schedule

Select the correct answer using the code given below.

- (a) Only 1 and 2 (b) Only 3, 4 and 5
(c) Only 1, 2 and 5 (d) 1, 2, 3, 4 and 5

I.A.S (Pre) 2012

Ans. (d)

Article 45 of the Directive Principles of State Policy after the 86th Constitutional Amendment Act 2002 makes provisions for early childhood care and education for all the children until they complete the age of six years. Under Article 243(G) and 243(W), Panchayats and the Municipalities, respectively are entrusted with powers, authorities and functions which among others also includes responsibility of management of education. The Sixth and seventh schedules also includes provisions related to education while provisions for administration of scheduled areas and scheduled tribes under schedule five also include education indirectly.

32. Constitution's Tenth Schedule relates to-

- (a) National Language of India
- (b) Administration of SC's and ST's Area
- (c) Judicial Review
- (d) Anti-defection Law

41st B.P.S.C. (Pre) 1996

Ans. (d)

See the explanation of the above question.

33. The Tenth Schedule of Indian Constitution deals with-

- (a) Anti-defection law
- (b) Panchayati Raj
- (c) Land Reforms
- (d) Distribution of Powers between Union and States

U.P.P.C.S. (Mains) 2005

Ans. (a)

See the explanation of the above question.

34. Which one of the following is not included in the Union List in the Seventh Schedule of the Indian Constitution-

- (a) Banking
- (b) Insurance
- (c) Census
- (d) Gas

U.P.P.C.S. (Pre) 1997

Ans. (d)

In the given options, (subjects) Banking, Insurance and Census are related to the Union List, while Gas is related to State List.

35. Which one of the following is not included in the 'Union List' of the Constitution of India?

- (a) Defence
- (b) Foreign Affairs
- (c) Railways
- (d) Agriculture

Chhattisgarh P.C.S. (Pre) 2011

Ans. (d)

In the given options Defence, Foreign Affairs and Railways are the subjects of the Union List, but Agriculture is the subject of the State List.

36. Which one of the following is included in the State List under Seventh Schedule of Indian Constitution-

- (a) Education
- (b) Electricity
- (c) Railway Police
- (d) Forest

U.P.P.C.S. (Pre) 1997

Ans. (c)

Education, Electricity, and Forest are the subjects of the Concurrent List while Railway Police is the subject of the State List.

37. Which one of the following is in the State list?

- (a) Railway Police
- (b) Corporation Tax
- (c) Census
- (d) Economic and Social Planning

U.P.P.C.S. (Pre) 2001

Ans. (a)

The railway is a subject of the Union List, but Railway Police is the subject of State List. Corporation Tax and Census are under the Union List, but the Economic and Social Planning is the subject of the Concurrent List.

38. In which list of the Indian Constitution the 'Panchayati Raj' subject is included?

- (a) Union List
- (b) State List
- (c) Concurrent List
- (d) Residuary List

Chhattisgarh P.C.S. (Pre) 2011

M.P.P.C.S. (Pre) 2019

Ans. (b)

Entry 5 of the State List in the 7th Schedule provides for Local Government (Panchayati Raj).

39. Which one of the following subject is in List-III Concurrent List of the Seventh Schedule of the Constitution of India?

- (a) Criminal Procedure
- (b) Police
- (c) Prisons
- (d) Public Order

U.P.P.C.S. (Mains) 2006

U.P.P.C.S (Mains) 2011

Ans. (a)

Criminal Procedure is the subject of the Concurrent List in the 7th Schedule while Public Order, Prisons and Police are in the State List.

40. 'Marriage,' 'Divorce' and 'Adoption' are an entry in the Seventh Schedule of the Constitution' under the following—

- (a) List I - Union List
- (b) List II - State List
- (c) List III - Concurrent List
- (d) None of these three lists

U.P. Lower Sub. (Spl) (Pre) 2010

Ans. (c)

Marriage, Divorce and Adoption are the subjects of List III i.e., Concurrent List as Entry no. 5 in the VIIth Schedule.

41. Which List and Entry of Seventh Schedule of Indian Constitution is related to election of the legislature of the State?

- (a) List-I, Entry 72
- (b) List – II, Entry 27
- (c) List -II, Entry 37
- (d) List – III, Entry 32

M.P.P.C.S. (Pre) 2020

Ans. (a) & (c)

The 7th Schedule of the Indian Constitution deals with the division of powers between the Union government and State governments. List-1, entry 72 deals with elections to the Parliament, to the Legislatures of States and to the offices of President and Vice-President.

List -II, Entry 37 deals with elections to the Legislature of the State subject to the provisions of any law made by the Parliament.

Hence both option (a) & (c) are correct. As per MPPSC official answer key both the option (a) & (c) are correct.

42. The right of the government to impose taxes and fees is provided in which Schedule of Constitution?

- (a) VI Schedule
- (b) VII Schedule
- (c) IX Schedule
- (d) XI Schedule

I.A.S. (Pre) 2009

Ans. (b)

Article 246 of the Indian Constitution, distributes legislative powers, including the power taxation between the Parliament of India and the State Legislatures. Schedule VII enumerates these subject matters with the use of three lists: List I, List II and List III. Thus the right to impose taxes and fees by the Union and the States is provided in the VII Schedule of the Constitution.

43. Which one of the following statements is correct as per the Constitution of India?

- (a) Inter-State trade and commerce is a State subject under the State List.
- (b) Inter-State migration is a State subject under the State List.
- (c) Inter-State quarantine is a Union subject under the Union List.
- (d) Corporation tax is a State subject under the State List.

I.A.S. (Pre) 2024

Ans. (c)

Inter-State trade and commerce is mentioned under Entry 42 of the Union List (List I) in the Seventh Schedule of the Constitution of India. Hence, it is a Union subject and statement of option (a) is incorrect.

Inter-State migration and inter-State quarantine are mentioned under Entry 81 of the Union List. Hence, these are Union subjects. Thus, statement of option (b) is incorrect while statement of option (c) is correct.

Corporation tax is mentioned under Entry 85 of the Union List. Hence, it is a Union subject and statement of option (d) is incorrect.

44. Land Reform comes under the subjects of –

- (a) Union List (b) Concurrent List
(c) State List (d) none of these

43rd B.P.S.C. (Pre) 1999

Ans. (c)

Land Reforms are the subject of the State List. Land Reform Act has been added to Schedule IX of the Constitution and the IXth Schedule it self, by the 1st Amendment Act, 1951 to provide Constitutional protection to the states on matters of Land Reform Acts.

45. Which one of the following Schedules of the Constitution of India contains provisions regarding Anti-defection law?

- (a) Second Schedule (b) Fifth Schedule
(c) Eighth Schedule (d) Tenth Schedule

I.A.S. (Pre) 1998, 2014

Uttarakhand P.C.S. (Pre) 2021

70th B.P.S.C. (Re-Exam) 2024

Ans. (d)

The Tenth Schedule, which contains Anti-defection law, was added by the 52nd Amendment Act, 1985 in the Indian Constitution. It contains provision regarding Anti-defection Law and lays down the process by which legislators may be disqualified on the grounds of defection.

46. In which Schedule of the Indian Constitution Anti-defection Law is placed?

- (a) Sixth Schedule (b) Ninth Schedule
(c) Tenth Schedule (d) None of the above

U.P. Lower Sub. (Mains) 2013

Ans. (c)

See the explanation of the above question.

47. Under which Schedule of the Constitution of India can the transfer of tribal land to private parties for mining be declared null and void?

- (a) Third Schedule (b) Fifth Schedule
(c) Ninth Schedule (d) Twelfth Schedule

I.A.S. (Pre) 2019

Ans. (b)

The Supreme Court, In 1997, in its landmark judgment in the case Samatha vs state of Andhra Pradesh & others, declared that the transfer of tribal land to private parties for mining is unconstitutional, void and inoperative. The fifth schedule of the Indian Constitution has provisions relating to the administration and control of Scheduled Areas and Scheduled Tribes. According to this schedule, tribal land cannot be transferred to a private party.

48. If a particular area is brought under the Fifth Schedule of the Constitution of India, which one of the following statements best reflects the consequence of it?

- (a) This would prevent the transfer of land of tribal people to non-tribal people.
(b) This would create a local self-governing body in that area.
(c) This would convert that area into a Union Territory.
(d) The State having such areas would be declared a Special Category State.

I.A.S. (Pre) 2022

Ans. (a)

The Fifth Schedule of the Indian Constitution defines scheduled areas as the areas defined so by the President of India. In India, there are 10 states having scheduled areas. With consultation of the governor of state, the president can alter, add or diminish the boundary of a scheduled area. The Governor can also repeal or amend any regulations with respect to the state having scheduled areas, but only with the assent of the president of India. Para (5) of the Fifth Schedule provides special power to the governor of the concerned state. Under this power, he prevents the transfer of land from tribal people to non-tribal people.

49. The Fifth Schedule deals with the governance and protection of the interests of which specific group of people?

- (a) Scheduled Castes (b) Religious Minorities
(c) Scheduled Tribes (d) Linguistic Minorities

69th B.P.S.C. (Pre) 2023

Ans. (c)

The Fifth Schedule of the Constitution deals with the administration and control of Scheduled Areas as well as of Scheduled Tribes residing in any State other than the States of Assam, Meghalaya, Tripura and Mizoram.

50. Which Schedule of the Constitution of India contains special provisions for the administration and control of Scheduled Areas in several states?

- (a) Third (b) Fifth
(c) Seventh (d) Ninth

I.A.S. (Pre) 2008

Ans. (b)

Schedule V of the Constitution provides for the administration and control of Scheduled Areas and Scheduled Tribes except in the States of Assam, Tripura, Meghalaya and Mizoram. The provision of administration of tribal areas in these States is provided in the VI Schedule of the Constitution.

51. The provisions of the fifth and Sixth Schedule in the Constitution of India are made to –

- (a) Protect the interests of Scheduled Tribes
(b) Determine the boundaries between States
(c) Determine the powers, authority and responsible of Panchayats
(d) Protect the interests of all the border States

I.A.S. (Pre) 2015

Ans. (a)

Special provisions are laid down by the fifth and sixth schedules in the constitution of India to protect the interests of Scheduled Tribes.

52. The 6th schedule of the Indian Constitution is related to the administration of Tribal areas of :

- (a) Assam, Arunachal Pradesh, Tripura & Mizoram
(b) Assam, Tripura, Nagaland & Mizoram
(c) Assam, Nagaland, Meghalaya & Mizoram
(d) Assam, Meghalaya, Tripura & Mizoram

UP R.O./A.R.O. (Pre) 2023

Ans. (d)

The Sixth Schedule of Indian Constitution contains provisions related to the Administration of Tribal Areas in the States of Assam, Meghalaya, Tripura and Mizoram. Notably, the 6th schedule's main objective is to save and maintain tribal culture. Notably, Articles 244(2) and 275(1) of the Indian Constitution include the provision of the 6th schedule.

53. Provisions of Schedule sixth of the Constitution does not apply to which of these state?

- (a) Assam (b) Meghalaya

(c) Tripura

(d) Manipur

M.P.P.C.S. (Pre) 2005

Ans. (d)

The administration and control of tribal areas in the States of Assam, Tripura, Meghalaya and Mizoram are provided in the 6th Schedule, but the State of Manipur is not covered under this Schedule.

54. The Sixth Schedule of the Constitution of India deals with the administration of tribal areas of which of the following States?

- (a) Bihar, Chhattisgarh, Goa
(b) Meghalaya, Tripura, and Mizoram
(c) Uttarakhand, Manipur, Jharkhand
(d) Nagaland, Arunachal, Tripura

U.P.P.C.S. (Mains) 2016

Ans. (b)

See the explanation of the above question.

55. The provisions of the Sixth Schedule of Indian Constitution are applicable in which of the following states?

- (a) Tripura (b) Sikkim
(c) Nagaland (d) All of the above

U.P.P.C.S. (Pre) 2019

Ans. (a)

See the explanation of the above question.

56. Consider the following statements with reference to Scheduled areas :

1. The President of India notifies Scheduled areas.
2. State with scheduled areas need to constitute a Tribal Advisory Council.

Select the correct answer from the code given below :

Code :

- (a) Neither 1 nor 2 (b) Only 2
(c) Both 1 and 2 (d) Only 1

UP R.O./A.R.O. (Pre) 2023

Ans. (c)

The President of India notifies Scheduled areas. In Article 244 (1) of the Constitution, the expression Scheduled Areas means such areas as the President may by order declare to be the Scheduled Areas. Notably, para 4 of the Fifth Schedule provides for establishment of a Tribal Advisory Council in any state having scheduled areas.

57. With reference to 'Scheduled Areas' in India, consider the following statements :

1. Within a State, the notification of an area as Scheduled Area takes place through an Order of the President.
2. The largest administrative unit forming the Scheduled Area is the District and the lowest is the cluster of villages in the Block.
3. The Chief Ministers of the concerned States are required to submit annual reports to the Union Home Ministry on the administration of Scheduled Areas in the States.

How many of the above statements are correct?

- (a) Only one (b) Only two
(c) All three (d) None

I.A.S. (Pre.) 2023

Ans. (b)

Part X of the Constitution, Article 244, provides for a unique administrative structure for some places classified as "scheduled areas" and "tribal areas." As per Part C of the Fifth Schedule of the Constitution, the expression Scheduled Areas means such areas as the President may by order declare to be Scheduled Areas. The largest administrative unit forming the scheduled areas is the district and the cluster of villages in the block is the lowest. Hence, statements 1 and 2 are correct. At present, 10 states of India have scheduled areas. These are: Andhra Pradesh, Telangana, Jharkhand, Chhattisgarh, Gujarat, Himachal Pradesh, Madhya Pradesh, Maharashtra, Odisha and Rajasthan. The governor has a special responsibility regarding such areas. He has to submit a report to the president regarding the administration of such areas, annually or whenever so required by the President. Hence statement 3 is not correct.

58. What is/are true in relation to Autonomous Districts?

- (i) Each Autonomous District Council has 30 members
- (ii) 24 members of Autonomous District Council are elected via voting and rest 6 are nominated by Governor
- (iii) Rights to direct the Acts passed by Parliament of India in Autonomous Districts of Assam lies with Governor

- (a) (i), (ii) and (iii) (b) (i) and (iii)
(c) (i) and (ii) (d) Only (i)

Chhattisgarh P.C.S. (Pre) 2021

Ans. (b)

The sixth schedule contains provisions related to the Administration of Tribal Areas in the states of Assam, Meghalaya, Tripura and Mizoram. The provisions of the sixth schedule are provided under Articles 244(2) and 275(1) of the Indian Constitution. The Sixth Schedule made provision that tribal areas are to be administered as Autonomous Districts and Autonomous regions. There shall be a District Council for each autonomous district consisting of not more than 30 members of whom not more than 4 persons shall be nominated by the governor, and the rest shall be elected on the basis of adult suffrage.

59. The Eleventh Schedule of the Constitution is related to which of the following?

- (a) Municipality
(b) Panchayati Raj
(c) Centre-State relationship
(d) Removal of corruption

U.P.P.S.C. (R.I.) 2014

U.P.P.C.S. (Pre) 2015

Ans. (b)

The Eleventh Schedule was added in the Constitution of India by the 73rd Constitutional Amendment 1992. It contains a total of 29 subjects.

60. The list of powers, authority and responsibilities which may be entrusted to the Panchayats is given in the :

- (a) Eleventh Schedule
(b) Twelfth Schedule
(c) Seventh Schedule
(d) State list

M.P.P.C.S. (Pre) 2024

Ans. (a)

The list of powers, authorities and responsibilities which may be entrusted to the Panchayats is given in the Eleventh Schedule as it is mentioned in the Article 243 G. The Eleventh Schedule was added to the Constitution by 73rd Constitutional Amendment Act, 1992. This Schedule includes a total of 29 entries.

61. How many items are there in the 11th Schedule of the Constitution of India?

- (a) 22 (b) 24
(c) 29 (d) 32

U.P. P.C.S. (Pre) 2019

Ans. (c)

See the explanation of the above question.